

25STCP03344 25STCP03344

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-09-18

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Case Number: 25STCP03344 Hearing Date: September 18, 2026 Dept: 617

Dept.

617

Date:

9-18-26

Case

#: 25STCP03344

Trial

Date: N/A

CONFIRM ARBITRATION

MOVING

PARTY: Petitioner, Suzanne Barton Grant

RESPONDING

PARTY: Unopposed/Respondents, Barry Navidi and Lear Rex, LLC

RELIEF

REQUESTED

Petition

to Confirm Arbitration Award

SUMMARY

OF ACTION

Following

an arbitration hearing on July 11, 2025, an award was entered on August 15, 2025 in favor of Petitioner Suzanne Barton Grant against Respondents Barry Navidi and Lear Rex, LLC in the amount of \$1,791,625 with interest accruing at the rate of 20%. Petitioner was further granted a 3.5% net profit participation interest in the Lear Rex film production.

RULING: Granted.

Petitioner moves to confirm the August 15, 2025 arbitration award issued by arbitrator the Hon. Elizabeth A. White (Ret.). The award reflects that Respondents breached a settlement agreement reached after the demand for arbitration and that the parties conceded that the award should issue. [Pet. Attachment 8(c), pp. 1-2.] An award was entered in Petitioner's favor in the amount of \$1,791,625 with interest accruing at the rate of 20%. [Id. at p. 2.] Petitioner was also granted a 3.5% net profit participation interest in the Lear Rex film production. [Ibid.] The award indicates that it was served on the parties on August 15, 2025. [Id. at p. 3.] Respondents do not oppose the petition. The petition is granted and the arbitration award is confirmed.

"After

arbitration has resulted in an award, the Arbitration Act permits a party to petition 'the court to confirm, correct or vacate the award.' (§ 1285.) The opposing party may respond to such a petition by requesting 'the court to dismiss the petition or to confirm, correct or vacate the award.' (§§ 1285.2, 1287.2.) The proponent of the arbitration award (whether it be the petitioner or the respondent) must recite or attach a copy of the arbitration agreement. (§§ 1285.4, subd. (a), 1285.6.) A court presented with such a petition or response is empowered only to confirm, correct, or vacate the award or to dismiss the proceeding. (§ 1286.) If the court confirms the award, it shall enter judgment accordingly. (§ 1287.4)" (Toal v. Tardif (2009) 178 Cal.App.4th 1208, 1220.) "[B]efore a court may confirm an arbitration award, the court must first find the existence of a valid arbitration agreement." (Id. at p. 1221.)

The

petition satisfies all requirements. On June 2, 2026, Respondents filed a general denial and thus made an appearance in this case. The Loan Agreement

that is the subject of the dispute provides that any controversy or claim arising out of or relating to the agreement shall be resolved by arbitration. [Pet. Attachment 5, p. 5.] The Settlement Agreement provides that the “Arbitrator shall retain jurisdiction to enforce the term of this Settlement Agreement.” [Id. Attachment 4(b), pp. 2-3.] Both agreements are signed by Respondents. The arbitration award is therefore confirmed, and Petitioner is entitled to judgment in accordance with the award.

Petitioner
to submit a proposed judgment.

Petitioner
to give notice.